

1. You read that one of the main functions of the judiciary is 'upholding the law and Enforcing Fundamental Rights'. Why do you think an independent judiciary is necessary to carry out this important function?

Answer An independent judiciary is necessary to carry out the function of 'upholding the law and enforcing Fundamental Rights'. It intends to shield the judicial process from external influences and provide full legal protection to all individuals going to court for whatever reason.

Anyone can approach the courts if they believe that their rights have been violated. If any law passed by the Parliament violates anyone's Fundamental Rights, the judiciary has power to declare such a law as null and void.

2. Re-read the list of Fundamental Rights provided in Chapter 1. How do you think the Right to Constitutional Remedies connects to the idea of judicial review?

Answer Right to Constitutional Remedies gives the right to a citizen to approach the court if the citizen thinks that that State has violated his/her fundamental rights. If the government passes a law that is not in line with the basic tenets of the Constitution then the judiciary has the right to strike down that law. This helps in ensuring that the State cannot make a law arbitrarily. Thus, the Right to Constitutional Remedies connects to the idea of judicial review.

3. In the following illustration, fill in each tier with the judgments given by the various courts in the Sudha Goel case. Check your responses with others in class.

Answer

1. Lower Court (Trial Court): Laxman, his mother Shakuntala and his brother-in-law Subhash Chandra were sentenced to death.
2. High Court: Laxman, Shakuntala and Subhash Chandra were acquitted.
3. Supreme Court: Laxman and Shakuntala were given life imprisonment, while Subhash Chandra was acquitted for lack of sufficient evidence.

4. Keeping the Sudha Goel case in mind, tick the sentences that are true and correct the ones that are false.

(a) The accused took the case to the High Court because they were unhappy with the decision of the Trial Court.

(b) They went to the High Court after the Supreme Court had given its decision.

(c) If they do not like the Supreme Court verdict, the accused can go back again to the Trial Court.

Answer

(a) True

(b) False. They went to the High Court after the Trial Court had given its decision.

(c) False. If they do not like the Supreme Court verdict, the accused cannot go back again to the Trial Court, because the Supreme Court is the highest court in the judiciary pyramid.

5. Why do you think the introduction of Public Interest Litigation (PIL) in the 1980s is a significant step in ensuring access to justice for all?

Answer: In theory, anybody can approach the judiciary for seeking justice. But in practice, majority of people are unable to go to the courts because court cases involve lot of monetary burden and paperwork. It takes many years for a case to be resolved by the court. A PIL can be filed by anybody or any organization on behalf of affected people. This is a tool which gives access to the judiciary for the poorest of the poor. Thus, introduction of PIL is a significant step in ensuring justice for all.

6. Re-read excerpts from the judgment on the Olga Tellis vs Bombay Municipal Corporation case. Now write in your own words what the judges meant when they said that the Right to Livelihood was part of the Right to Life.

Answer In the Olga Tellis vs. Bombay Municipal Corporation case, the judges stated that the Right to Livelihood was part of the Right to Life. They stated that life does not merely means an animal existence, it cannot be lived without the means of livelihood. In the above mentioned case, people were poor and lived in slums they had small jobs and no other place to live. For them, the eviction of their slum means deprivation of their livelihood which consequently means deprivation of life. This is how judges connected right to life to the basic requirements of any livelihood i.e. Food, Clothes and shelter.

7. Write a story around the theme, 'Justice delayed is justice denied'.

Answer Mr ABC was working abroad on his retirement, he came back to his nation to live in his father`s house. In that house the tenants were living he told them to clear the place so that his family can live as he had no other house but the tenant refused to leave and took a stay order and filed a case due to which he had to start living in a rented house. It took five years in the court for the decision at last the decision was in his favour. Next morning he came to know that the tenant has done an appeal in the higher court which lead to another 5 years. So in total he got justice after ten years, but wasted a lot of money on rent to live for ten years. So it is true justice delayed is justice denied.

8. Make sentences with each of the glossary words given.

Acquit, To appeal, Compensation, Eviction, Violation.

Answer

1. **Acquit:** Laxman was acquitted by the High Court.
2. **To Appeal:** The family members of Sudha wanted to appeal in the Supreme Court.
3. **Compensation:** The Court ordered for suitable compensation to be given to the slum dwellers.
4. **Eviction:** The municipal authorities came with an eviction notice against the slum dwellers.
5. **Violation:** Taking away the means of livelihood is clear violation of the Right to Life.